

# FHS Theory of Politics: Justice

## Reading List:

Reading:

Stuart White, Equality, chapter 3.

David Miller, Principles of Social Justice, chapters 7, 9 (and 8 if time).

John Rawls, A Theory of Justice: Revised Edition, especially sections 11-14, 26, 29; see also 1-5, 7-8, 10, 15-17, 20-30, 41-43.

Iris Marion Young, Justice and the Politics of Difference, chapter 7 (also chapters 1, 2 if time).

Glenn C. Loury, 'Why Should We Care About Group Inequality?', Social Philosophy and Policy 5 (1), 1996.

Further reading:

Friedrich Hayek, The Constitution of Liberty, chapter 6.

Charles Mills, 'Rawls on Race/Race in Rawls', The Southern Journal of Philosophy 47(1) (2009), pp. 161-184.

Tommie Shelby, Dark Ghettos, Introduction, chapter 6.

Susan Moller Okin, Justice, Gender, and the Family, chapter 5.

Jeremy Waldron, 'John Rawls and the social minimum', in Jeremy Waldron, Liberal Rights.

G.A. Cohen, If You're an Egalitarian, How Come You're So Rich?, lectures 8, 9.

Will Kymlicka, Contemporary Political Philosophy, chapters 2-3.

## Past Essay Questions:

'Justice and injustice are institutional problems with institutional solutions.' Discuss. [2024]

Is distributive justice primarily a matter of reciprocity between equals? [2023]

'Global inequalities are morally arbitrary, and justice therefore requires global redistribution.' Discuss. [2022]

'There are principles of distributive justice that apply globally, but these are different from the principles that apply within the state.' Discuss. [2021]

NA [2020]

## Actual Notes

### Rawls' Theory of Justice

#### Concept 1: What Justice Is

- Primacy of Justice
  - John Rawls famously described it as 'the first virtue of social institutions'
  - Constraining the good

- Justice as fairness is to provide an acceptable philosophical and moral basis for democratic institutions and how the claims of equality and liberty are to be understood
  - Most fundamental idea in this conception of justice is the idea of society as a fair system of social cooperation over time from one generation to the next
- Role of the principles of justice is to specify the fair terms of social cooperation; specifying basic rights and duties to be assigned by the main political and social institutions, and they regulate the division of benefits arising from social cooperation and allot the burdens necessary to sustain it
  - Citizens are to be regarded as free and equal persons → principles of a democratic conception of justice specifies the fair terms of cooperation between citizens so conceived
  - Among individuals with disparate aims and purposes a shared conception of justice establishes the bond of civic friendship; the general desire for justice limits the pursuit of other ends
- Concept of justice vs conception of justice
  - The concept of justice is what all conceptions of justice have in common → specifies the general structure of all conceptions
- The subject of justice is “the basic structure of society” or “the way in which the major social institutions distribute fundamental rights and duties and determine the division of advantages from social cooperation”
  - So, it only creates rules for institutions and not for persons
- The principles of justice are principles that free and rational persons concerned to further their own interests would accept in an initial position of equality as defining the fundamental terms of their association
- Reflective equilibrium
  - Characterise the initial choice situation in order to yield a strong set of principles to match our considered convictions of justice, if not we look for further principles
  - By going back and forth, we either modify the account of the initial situation or we can revise our existing judgements
- Justice and its place in society
  - Not the only values → there are other values which we can pursue within the limits of justice → efficiency etc

#### Justification of principles

- The principles of justice are justified because they would be agreed to in an initial situation of equality
  - The conditions embodied in the description of the original position are ones that we do in fact accept
- The conditions of the initial choice situation reflect the concept of justice

- Impartiality → “these constraints express what we are prepared to regard as limits on fair terms of social cooperation”
- Interpretation of the Original Position: “see it as an expository device which sums up the meaning of these conditions and helps us to extract their consequences”

#### Formal Constraints on the Right

- General: without using proper names, or definite descriptions
  - Must be capable of serving as a public charter for a well-ordered society in perpetuity
  - Being unconditional, they always hold and the knowledge of them must be open to individuals in any generation
  - Need not require knowledge of contingent particulars
- Universal in application: hold for everyone in virtue of their being a moral person
- Publicity: parties assume that they are choosing principles for a public conception of justice → everyone will know about these principles
- Order on conflicting claims: Must be able to order competing demands
- Finality: Must be the final court of appeal in practical reasoning
- Summary: the conception of right is a set of principles, general in form and universal in application, that is to be publicly recognised as a final court of appeal for ordering the conflicting claims of a moral person

#### Justice as fairness

- Justice as fairness is a form of political liberalism: it tries to articulate a family of highly significant (moral) values that characteristically apply to the political and social institutions of the basic structure
- It gives an account of these values in light of certain special features of the political relationship as distinct from other relationships, associational, familial and personal
  - It is a relationship of persons within the basic structure of society, a structure we enter only by birth and exit only by death. Political society is closed, as it were; and we do not, and indeed cannot, enter or leave it voluntarily
  - Political power is always coercive power applied by the state and its apparatus of enforcement; but in a constitutional regime political power is at the same time the power of free and equal citizens as a collective body. Thus political power is citizens’ power which they impose on themselves and one another as free and equal
- The idea of political liberalism arises from two facts
  - The fact of reasonable pluralism: that a diversity of reasonable comprehensive doctrines is a permanent feature of a democratic society
  - The fact that political power in a regime is to be regarded as the power of free and equal citizens as a collective body

- Political legitimacy and justification is thereby achieved when we are allowed to say: political power is legitimate only when it is exercised in accordance with a constitution the essentials of which all citizens, as reasonable and rational, can endorse in the light of their common human reason

#### The Basic Structure as the Subject of Justice

- First reason relates to how social institutions work and the nature of the principle required to regulate them over time to maintain background justice
  - Justice as fairness is a social process view which focuses first on the basic structure and on the regulations required to maintain background justice over time for all persons equally, whatever their generation or social position
  - Taking the basic structure as the primary subject enables us to regard distributive justice as a case of pure background procedural justice: when everyone follows the publicly recognised rules of cooperation, the particular distribution that results is acceptable is just whatever the distribution turns out to be, allowing us to abstract from the enormous complexities of the innumerable transactions of daily life and frees us from having to keep track of the changing relative positions of particular individuals; society becomes an ongoing scheme of fair cooperation over time without any specified beginning or end relevant for political justice
  - In contrast, Locke's historical process view involves not only of the just initial state and of fair agreements but also of just social conditions under which fair agreements are to be reached. Even though the initial state may have been just, and subsequent social conditions may also have been just for some time, the accumulated results of many separate and seemingly fair agreements entered into by individuals and associations are likely to undermine the background conditions required for fair and free agreements
- Second reason relates to its profound and pervasive influence on the persons who live under its institutions
  - Citizens are viewed as born into a society and are affected by three kinds of contingencies "arbitrary from a moral point of view"
    - Their social class of origin
    - Their native endowments
    - Their good or ill fortune over the course of life
  - If we ignore the inequalities in people's prospects in life arising from these contingencies and let those inequalities work themselves out while failing to institute the regulations necessary to preserve background justice, we would not be taking seriously the idea of a society as a fair system of cooperation between citizens as free and equal
    - We are asking: what principles of background justice are presupposed in taking seriously that idea of society

- If citizens of a well-ordered society are to recognise one another as free and equal, basic institutions must educate them to this conception of themselves, as well as publicly exhibit and encourage this idea of political justice
  - This task of education belongs to what we may call the wide role of a political conception which is part of the public political culture
  - Helps citizens be acquainted with the principles of justice and develop a sense of justice which they would not have if left to their own reflections
- By embedding the principles of justice into the basic structure of society, the sense of justice can be formed into the public conception and culture

## **Concept 2: The Original Position and Contract Theory**

### Why not utilitarianism

- Objection #1: Defines the right in terms of the good rather than the right independently from the good
- Objection #2: Violates the separateness of person → the principle of choice for one man is extended to the principle of choice for an association of men

### The Original Position

- Aim to specify a point of view from which a fair agreement between fair and equal persons can be reached; but this point of view must be removed from and not distorted by the particular features and circumstances of the existing basic structure
  - Using the Veil of Ignorance
- The participants in the Choice Situation
  - Rational beings with their own ends and capable of a sense of justice
  - Blocked by a veil of ignorance when choosing the principles of justice: no one knows his fortune in the distribution of natural assets and abilities, his intelligence, strength etc. Parties do not know their conceptions of the good or their special psychological propensities
    - Ensures no one is advantaged in the choice of principles by the contingency of social circumstance since all are similarly situated and no one is able to design principles in favour of his particular condition
  - Mutually disinterested but not egoist
  - Motivated by a thin theory of the good → want more of primary goods such as income, a wider sense of liberty and opportunity
- Together with the veil of ignorance, the original position explains the property of the name “justice as fairness”
  - It conveys the idea that the principles of justice are agreed to in an initial situation is fair
  - The scheme agreed upon is hypothetically consented to, and is as close as one can get to a voluntary arrangement

- Circumstances of Justice
  - Among the general facts the parties know are “the circumstances of justice.” Rawls says these are “conditions under which human cooperation is both possible and necessary”.
  - Following Hume, Rawls distinguishes two general kinds: the objective and subjective circumstances of justice. The former include physical facts about human beings, such as their rough similarity in mental and physical faculties, and vulnerability to the united force of others. Objective circumstances also include conditions of moderate scarcity of resources: there are not enough resources to satisfy everyone’s desires, but there are enough to provide all with adequate satisfaction of their basic needs; unlike conditions of extreme scarcity (e.g. famine), cooperation then seems productive and worthwhile for people.

#### The Idea of Free and Equal Persons

- Justice as fairness regards citizens as engaged in social cooperation and hence as fully capable of doing so, and this over a complete life
- Persons so regarded have what we may call “the two moral powers”
  - Capacity for sense of justice: to understand, to apply and to act from the principles of justice
  - Capacity for a conception of the good: the capacity to have, to revise, and rationally to pursue a conception of the good
- In saying that persons are regarded as having the two moral powers, we are saying that they have the requisite capacities not only to engage in mutually beneficial social cooperation over a complete life but also to be moved to honour its fair terms for its own sake
  - This is what Nussbaum means by Rawls straddling between Kantian and Humean lines
- Citizens are regarded as equal persons in that they are all regarded as having to the essential minimum degree the moral powers necessary to engage in social cooperation over a complete life and to take part in society as equal citizens
  - Having these powers to degree is what we take as the basis of equality among citizens as persons:

#### Argument from the Original Position

- Argument from the Maximin Rule
  - The argument for the principles of justice make use of the maximin principle of social choice

- In other words, to reach the principles of justice, Rawls must show that the persons in the Original Position would use the maximin rule as their guide to practical reason
- Rawls narrows his comparisons to two competing principles that the contractarians in the OP may choose from
  - Principle of Average Utility
  - Principle of Restricted Utility: Principle of Average Utility combined with a suitable social minimum
- Basic structure of an argument that justifies the use of maximin under OP
  - If there are certain conditions in which it is rational to be guided by the maximin rule when agreeing to principles of justice for the basic structure, then under those conditions the two principles of justice would be agreed to rather than the principle of average utility
  - There are certain conditions, three in particular such that when they obtain, it is rational to be guided by the maximin rule when agreeing to principles of justice for their basic structure
  - These three conditions obtain in the original position
  - Therefore, the two principles would be agreed to by the parties rather than the principle of average utility
- Three conditions
  - A: Since the maximin rule takes no account of probabilities of how likely it is that the circumstances obtain for their respective worst outcomes to be realised, the first condition is that the parties have no reliable basis for estimating the probabilities of the possible social circumstances that affect the fundamental interests of the person they represent. This condition fully obtains when the concept of probability does not even apply
  - B: Since the maximin rule directs the parties to evaluate the alternatives only by their worst possible outcomes, it must be rational for the parties as trustees not to be much concerned for what might be gained above what can be guaranteed by adopting the alternative whose worst outcome is better than the worst outcome of all other alternatives. Let's call this best worst outcome the "guaranteeable level". The second condition obtains, when the guaranteeable level is itself quite satisfactory. It fully obtains when this level is completely satisfactory
  - C: Since the maximin rule directs the parties to avoid alternatives whose worst outcomes are below the guaranteeable level, the third condition is that the worst outcomes of all the other alternatives are significantly below the guaranteeable level. When those outcomes are far below that level and altogether intolerable, and must, if possible, be avoided, the third condition fully obtains
- No second chance property and strains of commitment

- Parties are seen as making an agreement; it is not simply that they each separately make the same choice → agreement must be made in good faith, that is, not only with the full intention to honour it but also with a reasonable conviction that one will be able to do so
- Furthermore, there is no second chance and the agreement must be acknowledged in perpetuity
- Parties must weigh what we call the strains of commitment
  - They must ask themselves whether those they represent can be reasonably expected to honour the principles agreed to in the manner required by the idea of an agreement
  - No other agreement (without being guided by the maximin rule) can be made in good faith such as the arrangements following the principle of average utility
  - Only alternative that guarantees the fundamental interest of citizens as free and equal
- People cannot withdraw from the contract and thus must be able to sustain it even if they end up as the worst off in society

#### Against the Principle of Restricted Utility

- Third condition C no longer matters since both shield agents from the worst possibilities
- Rawls argues that condition B is fully satisfied by the maximin principle, and in turn, motivates the selection of the maximin rule i.e. that individuals do not care what happens above the guaranteeable level and simply care about a satisfactory guaranteeable level
- Grounds of Publicity:
  - Levels
    - First Level of Publicity: mutual recognition by citizens of the principles of justice together with the public knowledge that the institutions of the basic structure actually satisfy this belief
    - Second Level of Publicity: mutual recognition by citizens of the general facts on the basis of which the parties in the original position select those principles (we model in the original position the commonsense knowledge and beliefs of average reasonable citizens about the basic institutions and how they work)
    - Third Level of Publicity: mutual recognition of the complete justification of justice as fairness in its own terms. Citizens know its justification as fully as those who work out that view; justification is available in the public culture
  - The consequence of publicity is that the political conception of justice has an educational role → individuals must themselves form a conception of



themselves as citizens from the public culture and from the conceptions of the person and society implicit in it → justice as fairness is worked up from fundamental intuitive ideas belonging to that culture so this educative role is central

- What this means is that we must consider whether the difference principle or the principle of restricted utility is more appropriate to the conceptions of citizens as free and equal, and of society as a fair system of cooperation between citizens
- Since the idea of society as such a cooperative system contains some idea of mutual advantage, the educational role introduced by the publicity condition means that the common content of the alternatives provides a foothold for grounds of reciprocity
- Grounds of reciprocity
  - The difference principle embeds an idea of reciprocity that distinguishes it from the restricted utility principle
    - The RUP is a maximising aggregative principle with no inherent tendency toward either equality or reciprocity
  - The idea of reciprocity implicit in the difference principle selects a natural focal point between the claims of efficiency and equality
  - The economic arrangement selected by the difference principle meets the following reciprocity condition: those who are better off at any point are not better off to the detriment of those who are worse off at that point
- Grounds of stability
  - A political conception of justice must generate its own support and the institutions to which it leads must be self-enforcing
  - Three reasons for why justice as fairness generates its own support and secures its stability → the advantaged are those who have reason for discontent
    - First, there is the effect of the educational role of a public political conception → we suppose all members of society to view themselves as free and equal citizens who, in and through the basic structure of their institutions, are engaged in mutually advantageous social cooperation. Given this conception of themselves, they think that the principle of distribution that applies to the structure should contain an appropriate idea of reciprocity
    - Second, the advantaged are mindful of the deeper idea of reciprocity implied in the difference principle when it is applied to the basic structure: namely, that it tends to ensure that the natural contingencies are taken advantage of only in ways that are to everyone's advantage. The more advantaged see themselves as

already benefited by their fortunate place in the distribution of native endowments and benefited further by a basic structure

- Third, the difference principle (1) secures basic rights and liberties, (2) articulates a shared and clear basis of public reason, and (3) encourages the cooperative virtues of political life (reasonableness and a sense of fairness, and of a spirit of compromise) which underwrite the willingness if not the desire to cooperate on terms that all publicly accept as fair on a footing of equality and mutual respect

### **Concept 3: Principles of Justice**

#### Two Principles of Justice (in A Theory of Justice)

1. Each person is to have an equal right to the most extensive scheme of equal basic liberties compatible with a similar scheme of liberties for others
2. Social and economic inequalities are to be arranged so that they are both (a) reasonably expected to be to everyone's advantage, and (b) attached to positions and offices open to all

#### Revision in Justice as Fairness

1. Each person has the same inalienable claim to a fully adequate scheme of equal basic liberties, which scheme is comparable with the same scheme of liberties for all
2. Social and economic inequalities are to satisfy two conditions
  - a. First, they are to be attached to offices and positions open to all under conditions of fair equality of opportunity
  - b. They are to be to the greatest benefit of the least-advantaged members of society

#### The First Principle

- Given priority because basic rights and liberties protect and secure the scope required for the exercise of the two moral powers in the two fundamental cases
  - The exercise of those powers in judging the justice of basic institutions and social policies
  - The exercise of those powers in pursuing our own conception of the good
- These powers are essential to us as free and equal citizens
- The first principle does not just apply to the basic structure but more deeply to the constitution
- The priority to the first principle is given under the conditions of reasonable economic and social conditions

#### The Second Principle

- While the first principle covers constitutional essentials, the second principle is on the distributions of rewards

- Applies to different stages in the application of the principles and identifies two distinct roles of the basic structure
- The problem of distributive justice: how are the institutions of the basic structure to be regulated as one unified scheme of institutions so that a fair, efficient, and productive system of social cooperation can be maintained over time, from one generation to the next
  - It is not merely how a given bundle of commodities is to be distributed, or allocated, among various individuals whose particular needs, desires and preferences are known to us, and who have not cooperated in any way to produce those commodities → this is allocative justice
  - There is no criterion for a just distribution apart from background institutions and the entitlements that arise from actually working through the procedure
    - It is background institutions that provide the setting for fair cooperation within entitlements arise
- Interpretation of the second principle
  - Rawls suggests that “fair equality of opportunity” is not equal to “equality as career open to talents”
    - Equality as career open to talents only requires formal equality of opportunity in that all have at least the same legal rights of access to all advantaged social positions
    - But there is no effort to preserve an equality of social conditions except insofar as this is necessary to preserve the requisite background institutions, the initial distribution of assets for any period of time is strongly influenced by natural and social contingencies

#### The primary goods index

- 5 kinds of goods
  - Basic rights and liberties
  - Freedom of movement and free choice of occupation
  - Powers and prerogatives of offices and positions of authority
  - Income and wealth
  - Social bases of self-respect
- Objective character of the primary goods so as to be neutral towards conceptions of the good
  - What free and equal citizens need as citizens

#### Legitimate Expectations, Entitlement and Desert

- No criterion of legitimate expectation or of an entitlement apart from the public rules that specify the scheme of cooperation

- So no meritocracy → all these claims arise within the background system of fair social cooperation; they are based on public rules and on what individuals and associations do in light on these rules
- Moral desert: justice as fairness does not reject the concept of desert and recognises three ideas that in ordinary life are viewed as ideas of moral desert
  - First, the idea of moral desert in the strict sense: the moral worth of a person's character as a whole as well as moral worth of particular actions
  - Second, the idea of legitimate expectations contained within the principles of justice which is the other side of the principle of fairness
  - Third, the idea of deservingness as specified by a scheme of public rules designed to achieve certain purpose
- Justice as fairness only uses the second and third ideas of desert
  - The conception of moral desert as moral worth of character and actions cannot be incorporated into a political conception of justice in view of the fact of reasonable pluralism → conflicting conceptions of what good is
  - Legitimate expectations is suggested as a replacement and only applies to the political domain and nothing else
  - Rawls argues that the concepts of moral desert and deservingness come apart → deservingness is specified by the rules of the game while moral desert suggests some sort of intrinsic merit

#### Native Endowments as a common asset

- We do not deserve our place in the distribution of native endowments → moral truism
- Second and third ideas of desert do not depend on whether we morally deserve our place in the distribution of native endowments
  - Instead, we have an idea of entitlement → when people act in a way that trains their endowments and put them to work so as to contribute to other's good as well as their own, then they are deserving → Rawls appeals to some sense of efficiency or enlarging the pie
- Native Endowments are not literally a common asset but people agree as if to regard the distribution of endowments as a common asset
  - It is the distribution that is a common asset, not the natural endowments themselves per se + common asset is for expressive purposes
- The replacement for desert is satisfactory only if
  - It satisfies the political conception of justice
  - Authorises the social and economic inequalities necessary for running an industrial economy in a modern state
  - Express a principle of reciprocity since society is viewed as a fair system of cooperation

- It should appropriately handle the most serious inequalities from the point of view of political justice: inequalities in citizens' prospects as given by their reasonable expectations over a complete life

#### **Concept 4: Institutional Arrangements**

Four core questions

- Question of the Right: whether the institutions are just and right
- Question of design: whether the regime's institutions can be effectively designed to realise its declared aims and objectives.
- Question of Citizens: whether citizens can be relied on to comply with just institutions and the rules that apply to them in their various offices and positions
- Question of competence: whether the tasks assigned to offices and positions would prove simply too difficult for those likely to hold them

The Arrangement that realises the principles of justice

- Laissez-faire capitalism rejects both fair value of equal political liberties and fair equality of opportunities
- Welfare-state capitalism rejects the fair value of political liberties and has insufficient concern for equality of opportunities + no recognition of principle of reciprocity
  - Permits a very large inequality in the ownership of real property so that the control of the economy and much of political life
- State socialism violates the equal basic rights and liberties and the fair value of these liberties
- Only potential candidates: property owning democracy and liberal socialism
  - Liberal socialism: means of production are owned by society while liberal socialists carry on their activities within a system of free and workably competitive markets → free choice of occupation
  - Property owning democracy: different from welfare-state capitalism → not through persistent redistribution but through ensuring the widespread ownership of productive assets and human capital at the beginning of each period, all this against a background of fair equality of opportunity
  - Rawls suggests that if both work as intended, then both can realise the two principles of justice

#### **Criticisms of Rawls' Theory of Justice**

Waldron's social minimum

- Basically, replace the difference principle with a social minimum principle because it is supported by Rawls' argument more than his own difference principle
  - The difference principle requires us to attend to the position of the least favoured group no matter how well off they are

- The social minimum principle only requires us to attend to the worst off if there is a danger of members of that group falling below that minimum
- Possibility of rejection by the Original Position
  - Rawls argues that the social minimum must either be selected intuitionistically and therefore cannot be articulated behind the veil of ignorance
  - But Rawls does not reject the idea that a just society will guarantee a certain minimum for its citizens
    - Only conceiving social minimum principle as a social policy rather than a principle of justice is vulnerable to Rawls' objection
- Plausible approach for setting the social minimum
  - Often thought that Rawls is claiming merely that it would be irrational for parties in the uncertainty of the choice situation they face to gamble on coming out on the right side of any inequalities they licence → therefore maximin
  - But it is not clear that this is achieved by the uncertainty that Rawls has built in to the OP → even behind a 'veil of ignorance', it may make sense to gamble if he knows that a certain minimum is to be secured
  - Rawls' argument that the one-off character of the gamble is what motivates the maximin principle
    - One off bet with drastic consequences
    - What is important is about the strains of commitment → "when we enter an agreement we must be able to honour it even should the worst possibilities turn out to be the case" → that we cannot lose the sense of justice
  - Rawls thinks that people lose their sense of justice and are hostile towards their social system when they discover their interests have been neglected or sacrifice for the sake of others
    - Social minimum vs difference principle: is it the mere fact that the situation of the least favoured group could be improved but has not been that would excite their disaffection? Or would that depend on what cardinal level of well-being they enjoyed? Are they more disposed to disaffection at a lower level of welfare than at a higher level?
      - Difference principle answers no to the last question → but not an obvious assumption
  - The most likely conclusion of the original position is that the parties are aware of the problem of the strains of commitment but are uncertain about the answers to the above psychological questions
    - But the answer is that being aware of the problem of the strains of commitment, they should opt for a principle which fixes a social

minimum just above that level of immiseration which turns out to be the level beneath which sacrifices of well-being cannot normally be expected from individuals without serious disaffection and discontent

- An empirically conditional principle once we consider all the facts
  - This social minimum principle is neither intuitionistic or a covert dependence on the difference principle
- Problem with the social minimum: Rawls' difference principle has been criticised with allowing too much inequality but the social minimum dispenses with the substantive concern about inequality all together
  - Waldron argues that in a contracting starting point of the OP, no contract can do without a social minimum → one of the principles rather than a sufficient set

### Communitarian criticisms

#### Taylor's argument about the self

- In an essay titled "Atomism", Charles Taylor objected to the liberal view that "men are self-sufficient outside of society". (Taylor 1985, 2000) Instead, Taylor defends the Aristotelian view that "Man is a social animal, indeed a political animal, because he is not self-sufficient alone, and in an important sense is not self-sufficient outside a polis" (Taylor 1985, 190).
- Moreover, this atomistic view of the self can undermine liberal society, because it fails to grasp the extent to which liberalism presumes a context where individuals are members of, and committed to, a society that promotes particular values such as freedom and individual diversity. Fortunately, most people in liberal societies do not really view themselves as atomistic selves.
- As it turns out, the communitarian critique of the atomistic self does not apply to Rawlsian liberalism: in Part III of *Theory of Justice*, Rawls pays close attention to the psychological and social conditions that facilitate the formation of liberal selves committed to justice (Lefebvre 2024)

### *Sandel's Liberalism and its Limits*

#### Criticism of the primacy of justice

- Sandel argues that justice is an inappropriate virtue for family life → the circumstances of justice such as the scarcity of resources do not apply to Justice
- Sandel also argues that Rawls' claim for the primacy of justice is undermined by the existence of numerous social groupings in which the circumstances of justice do not predominate → Rawls considered family to be part of the "basic structure of society"
  - Such groupings are characterised by their more or less clearly defined common identities and shared purpose
  - The existence of such associations refute Rawls' claim that justice is the first or primary virtue of social institutions

- First, he agrees with Hume that in such “intimate or solidaristic associations...the values and aims of the participants coincide closely enough that the circumstances of justice prevail to a relatively small degree”. In “a more or less ideal family situation”, spontaneous affection and generosity will prevail
- Second, not only will justice not be the prevailing virtue in such associations, but if they were to begin to operate in accordance with principles of justice, an overall moral improvement would be by no means necessarily result. Instead, the loss of certain “nobler virtues, and more favourable blessings” could mean that “in some cases, justice is not a virtue but a vice”
- Given such a possibility, the moral primacy of justice is demonstrated to be unfounded

#### Argument against the conception of the self

- Sandel argues that it is not possible to conceive a subject apart from and prior to its purpose and ends → a world empty of telos
  - The teleological world view and the deontological liberal project come apart in what they consider as ends: the former creates a world governed by purposive order while the latter conceives of a world where the principles of justice are open to human construction and conceptions of the good to individual choice
- We have a notion of a self barren of essential aims and attachments: while this does not imply that we are beings wholly without purpose or incapable of moral ties, the values and relations we have are the products of choice of a self given prior to its ends
  - May lose its authority on us
- Qua noumenal selves or parties in the original position, we arrive at the principles of justice; qua actual, individual selves, we arrive at conceptions of the good
  - Therefore the principles we construct as noumenal selves constrain but do not determine the purposes we choose as individual selves, reflecting the priority of the right over the good
  - As inhabitants of a world without telos, we are free to construct principles of justice unconstrained by an order of value antecedently given
  - As Rawls says, we are ‘self-originating sources of valid claims’
- This deontological vision is flawed both within its own terms and more generally as an account of our moral experience
  - Within its own terms, the deontological self, stripped of all possible constitutive attachments, is less liberated than disempowered → neither the right nor good admits of the voluntarist derivation that deontology requires → as agents of construction we do not really construct and as agents of choice we do not really choose



- What goes on behind the veil of ignorance is not a contract or agreement but if anything a kind of discovery; what goes on in 'purely preferential choice' is less a choosing of ends than a matching of pre-existing desires, undifferentiated as to worth, with the best available means of satisfying them
  - "The sovereign subject is left at sea in the circumstances it was thought to command
- The moral frailty of the deontological self also appears at the level of first order principles: we find that the independent self, being essentially dispossessed, was too thin to be capable of desert in the ordinary sense for claims of desert presuppose thickly constituted selves, being capable of possession in the constitutive sense, but the deontological self is wholly without possessions of this kind
  - Rawls founds entitlements on legitimate expectations instead; if we are incapable of desert, at least we are entitled that institutions honour the expectations to which they give rise
  - But the difference principle requires more: it is birthed from the thought that the assets I have are only accidentally mine and it ends by assuming that these assets are therefore common assets and that society has a prior claim on the fruits of their exercise
  - This disempowers the deontological self or denies its independence → either my prospects are left at the mercy of institutions established for prior and independent social ends which may or may not coincide with my own, or I must count myself a member of a community defined in part by those ends, in which case I cease to be unencumbered by constitutive attachments
- Either way, the difference principle contradicts the liberating aspirations of the deontological project: we cannot be persons for whom justice is primary and also be persons for whom the difference principle is a principle of justice
- Fails to give an account for indispensable aspects of our moral experience
  - Deontology insists that we view ourselves as independent selves, independent in the sense that our identity is never tied to our aims and attachments
  - Given our moral power to form, to revise, and rationality to pursue a conception of the good, the continuity of our identity is unproblematically assured. No transformation of my aims and attachments could call into question the person I am, for no such allegiances, however deeply held, could possibly engage my identity to begin with
  - But we cannot regard ourselves as independent in this way without great cost to those loyalties and convictions whose moral force consists partly in the fact

- that living by them is inseparable from understanding ourselves as the particular persons we are – as members of this family or community or nation
- Allegiances such as these are more than values I happen to have or aims I ‘espouse at any given time’ → go beyond the obligations I voluntarily incur and the ‘natural’ duties I owe to human beings as such
  - They allow that I owe more than justice requires or even permits, not by reason of agreements I have made but instead in virtue of those more or less enduring attachments and commitments which taken together partly define the person I am
  - Imagining a person incapable of constitutive attachments is not to conceive an ideally free and rational agent but to imagine a person wholly without character and moral depth → the deontological self is without moral sense or self-knowledge → incapable for self-reflection
  - When I act out of character, my choice of ends are not arbitrary but in consulting my preferences, I have not only to weigh their intensity but to assess their suitability to the person I already am → not only what I really want but who I really am
  - To see ourselves as deontology would see us is to deprive us of those qualities of character, reflectiveness, and friendship that depend on the possibility of constitutive projects and attachments
  - Strangers make for citizens of the deontological republic; justice finds its occasion because we cannot know each other, or our ends, well enough to govern by the common good alone

#### Okin’s Considerations of Family and Women

- Family is not beyond Justice
  - Hume argues that because of “enlarged affections”, every man “feels no more concern for his own interest than for that of his fellows”, justice is useless because it is unnecessary
  - Sandel argues that justice is an inappropriate virtue for family life → the circumstances of justice such as the scarcity of resources do not apply to Justice
  - However, Okin argues that justice takes primacy in all social groupings because it is the most essential and not because it is the highest of virtues; Sandel’s arguments for other virtues only show that there are “supererogatory actions” such as “acts of benevolence and mercy, of heroism and sacrifice”
    - In Rawls’ view, such moralities of supererogation, while they require more than the norm of right and justice, do not in any way contradict them because their aims are continuous with the principles of justice but extend beyond what they require and because such moralities

need to rely upon basic principles of justice when the claims of the goods they seek conflict

- But could Sandel be suggesting that justice is a vice in family because of its explanation to action? Its practical reasoning is governed by the fact that society is mutually advantageous → but family demands for loyalty and association even if family is burdensome

- Okin also argues that Sandel fails to look at families who do not fulfil the saintly ideal → necessary for families to have justice

- But I think Sandel's argument stems from an explanatory role → violence in the domestic sphere or the subjection of women to men

- Feminist Criticism of Justice as Fairness

- Criticises the ambiguity that runs throughout the theory of justice but acknowledges that a consistent and wholehearted application of Rawls' principles can lead to a fundamental challenge of the gender system of the society

- Does justice as fairness apply to women?

- Ambiguity in the Original Position: the lists of things unknown by a person in the OP includes "his place in society, his class position or social status...his conception of the good" but his sex is not mentioned

- Worsened by the fact that those free and equal moral persons in the original position who formulate the principles of justice are not single individuals but as "heads of families" or "representatives of families"

- Rawls makes no provisions for a principle of justice within the family

- Wives go completely unrepresented in the original position and only says that "favouring men over women is justified by the difference principle...only if it is to the advantage of women and acceptable from their standpoint"

- Distributive justice shares are discussed in terms of household income but discussions of the "individual" is interspersed into the discussion as if there were no difference between the advantage or welfare of a household and that of an individual

- Obscures the fact that wages are paid to employed members of the labour force, but that in societies characterised by gender, a much larger proportion of women's than men's labour is unpaid

- Obscures the fact that the economic dependence of women on men is likely to affect the power relations within the household, as well as access to leisure, prestige, political power and so on

- Does not consider as part of the basic structure of society the greater economic dependence of women and the sexual division of labour within the typical family or any of the broader social ramifications of this basic gender structure

- Rawls assumes that families are just; Rawls perceives the family as the first of many associations in which, by moving through a sequence of roles and positions, our moral understanding increases. The crucial aspect of the sense of fairness that is learned during this stage is the capacity which is essential for being able to think as if in the original position
  - Building on attachments formed in the family, participation in different roles of associations of society leads to the development of a person's capacity for fellow feeling and to ties of friendship and mutual trust
- Rawls does not explain the basis of his assumption that family institutions are just – if gendered families are not just, but are a relic of a caste system in which roles and responsibilities are distributed not in accordance with the two principles of justice but in accordance with innate differences that are imbued with enormous social significance, then Rawls' whole structure of moral development would seem to be built on shaky ground
- In order to have moral development that creates a way of thinking that mirrors the Original Position, one needs to be parented equally by both sexes to develop a well-rounded moral psychology to enable them to engage in the kind of deliberation about justice
- Rawls' language of rational choice leaves him vulnerable to three criticisms; this language of rational choice contrasts with his emphasis of moral development and its emphasis on moral feeling that originate in the family
  - Involves unacceptably egoistic and individualistic assumptions about human nature
    - The veil of ignorance is such a demanding stipulation that it converts what would, without it, be self-interest into equal concern for others, including those who are very different from ourselves
    - Those in the original position cannot think from the position of nobody, as is suggested by those critics who then conclude that Rawls' theory depends on a "disembodied" concept of the self
    - Okin suggests that they must rather think from perspectives of everybody, in the sense of each in turn → requires strong empathy and a preparedness to listen carefully to diverse views → only can be developed within just families
  - Taking an outside perspective, it is of little and no relevance to actual people thinking about justice
  - Its aim to create universalistic and impartial principles leads to the neglect of "otherness" or difference
- Okin argues that Rawls' theory would lead to the abolition of gender – that there would be no distinct standpoint of man and woman

- “For if principles of justice are to be adopted unanimously by representative human beings ignorant of their particular characteristics and positions in society, they must be persons whose psychological and moral development is in all essentials identical – all social factors influencing the factors presently found between sexes would have to be replaced by genderless institutions and customs”
  - Only when men participate equally in what have been principally women’s realms of meeting the daily material and psychological needs of those close to them, and when women participate in equally in what have been men’s realms of larger scale production, government and intellectual life will members of both sexes be able to develop a more complete human personality than has been possible
  - Rawls has assumed that human psychology, rationality and moral development are completely represented by the males of the species, this assumption is birthed from the male dominated ideology of our gendered society
- The consideration of the standpoint of women might transform the primary goods index from focusing on complex activities that Rawls values most highly to relationships

## Alternative theories of Justice

### *Martha Nussbaum’s Capability Centred Account*

Summary: Argues that Rawls’ account is defective, primarily its conception of the contracting parties; in turn, she advances her own capabilities account of justice that is outcome-based rather than procedure-based

### Section I: 4 Criticisms of Rawls’ initial choice situation (using the disability examples)

- Problem #1: Account of primary goods with its commitment to measuring relative social positions with reference to wealth and income, rather than by some more heterogeneous and plural set of indices such as capabilities
  - Rawls desires for a linear ranking of social positions on the scale of income/wealth → Rawls insists that “self-respect” or its social basis is the most important of the primary goods, but when it comes to measuring the least well-off in society, he ignores self-respect and elects to measure social positions in terms of income and wealth alone
  - A complex and multivalued analysis of social positions might be preferable but Rawls refuses this analysis due to economy
    - But there are other goods that persons with disabilities would want such as basic functionings or capabilities such as access to public parks and spaces

- Problem #2: Kantian political conception of the person which requires a high degree of both moral and prudential rationality which renders the equal citizenship of people with severe mental impairments and also poses problems for 'normal' people as they age, grow and go through decline
  - Rawls assumes that "the capacity for a sense of justice" is possessed by the overwhelming majority except for "scattered individuals"
  - People with severe mental impairments are those "scattered individuals"
  - Confuses the framers of the social contract as the same group of citizens for whom the principles are being framed for
  - Rawls' theory is articulated in terms of a Kantian conception of the person, which makes possession of the mental and moral powers central to equality and to the key idea of reciprocity
    - Kant argues that humans occupy two fundamentally different realms: the physical realm that follows deterministic laws and the realm of reason
  - Problems with the Kantian split between personhood and animality:
    - Our dignity is a very animal sort of dignity → one filled with vulnerability and mortality and could not be possessed by Kant's other rational beings such as angels and God
    - Wrongly suggests that our personality is self-sufficient rather than needy → we distort the nature of our own morality and rationality which themselves are thoroughly material and animal → ignore the fact that disease, old age and accident can impede the moral and rational functions
    - Wrongly conceives of persons as atemporal with no periods of dependency and need (birth and decline)
    - Goes wrong in two directions: that our rationality independent of our animal vulnerability, and that animals lack intelligence
  - Rawls does not endorse Kant's metaphysics, but he seems to show great interest in them → for Rawls, his Kantianism is empirical
    - Just as Kant suggested that there is no reciprocity between animals and humans, Rawls must deny that reciprocity and relations of justice hold between "normal" human beings and persons with severe mental impairments
  - Need to consider complex forms of reciprocity which are failed to be considered in Rawls' Kantian sense → an animal dignity
    - Persons with severe mental disabilities may not have the capacity for a sense of justice or forming a life plan and an overall conception of the good that renders them unable to obtain membership in the Kantian moral community

- Problem #3: the commitment that the parties in the contracting situation are roughly equal in power and ability and the related idea of mutual advantage as the goal they pursue through cooperating rather than not cooperating → at the heart of all social contract theories
  - Rawls has a moralised version of the social contract, whereby he replaces Gauthier's egoistic individuals with a moral impartiality
  - Rawls called Hume's account of the Circumstances of justice "the normal conditions under which human cooperation is possible and necessary" despite his Kantian focus on fair conditions
  - In Rawls' account, even though people's knowledge of their positions in society are hidden by the Veil of Ignorance, he suggests that the parties in the Original Position know that their abilities – physical and mental – lie within a "normal" range. This is not helped by the fact that Rawls regards the contracting parties as representatives of citizens who are "fully cooperating members of society over a complete life" → the "fundamental question of political philosophy" he suggests is "how to specify the fair terms of cooperation among persons so conceived"
    - The logic of mutual advantage is deeply embedded in Rawls' account as well → people will only get together with others to contract for principles of justice only in certain circumstances of scarcity and interdependence
  - The assumption of normal capacities enables us to "achieve a clear and uncluttered view of what, for us, is the fundamental question of political justice: namely, what is the most appropriate conception of justice for specifying the terms of social cooperation between citizens regarded as free and equal, and as normal and fully cooperating members of society over a complete life?"
    - Rawls omits from the initial choice situations considerations of persons needing more extreme forms of care → Rawls recognises the exclusion of humans with unusual impairments but argues that this problem should be solved later on
  - Unable to hide any physical impairments behind the Veil for three reasons: (1) primary goods index become complicated, (2) adherence to the social contract idea that some impairments are extremely rare and thus renders it extremely expensive to make them "normally productive"
  - Tension in Rawls' view with respect to disability: on one hand, one of its central purposes is to give questions of justice priority over efficiency. The idea that each person is an end lies at the core of the theory and this Kantian core is thoroughly embedded in the OP. On the other hand, with Hume's account of the Circumstances of Justice taking the place of the state of nature, the structural features of rough equality and the goal of mutual

advantage still shape the account of who is initially included and what each party is trying to get out of cooperating

- The contracting parties and trustees of these representatives remain people with “normal” impairments and exclude those who are not part of these kinds of people → in fact, if some persons are burdened with the care for extreme dependents, there seems no reason for them to have consented to such a contract in the first place

## Section II: A capabilities approach construction of justice

- An outcome based approach: simply identifying the core human entitlements that should be respected and implemented by governments of all nations, as a bare minimum of what respect for humanity requires
  - Best approach to this idea is the establishment of a social minimum via human capabilities i.e. what people are actually able to do and to be, in a way informed by an intuitive idea of a life that is worthy of the dignity of the human being
  - Presented as a source of political principles for a liberal pluralistic society and are specifically political goals that are free of any metaphysical grounding
    - Object of overlapping consensus among people who otherwise have very different comprehensive conceptions of the good → a contractarian echo in Nussbaum’s theory
- The capabilities in question should be pursued by each and every person, treating each as an ends and not a means to an end
  - Uses the idea of a threshold level of each capability, beneath which truly human functioning is not available to citizens → the social goal should be understood in terms of getting citizens about this capability threshold
- Fundamental difference between contractarianism and capabilities approach: theoretical structure
  - Rawls’ account is a procedural approach to justice
    - It designs a procedure that models certain key features of fairness and impartiality, and relies on these procedures to generate an adequately just outcome → given an adequate design of the original position, whatever principles that emerge are by definition just
  - Nussbaum claims that the capabilities approach is like a criminal trial. It begins from the outcome: with an intuitive grasp of a particular content, as having a necessary connection to a life worthy of human dignity, it then seeks political procedures (a constitution, various allocations of powers, a certain type of economic system) that will achieve that result as nearly as possible
    - Justice is the outcome, and the procedure is a good one to the extent that it promotes this outcome



- Nussbaum recognises that the capabilities approach relies on intuitionism more so than the contractarian approach → are our intuitions even well-formed given that we have grown up in nonideal scenarios?
  - Rawls expresses opposition to intuitionism because it relies on intuition in balancing competing ends → will never generate principles that are stable, precise or final → but the capabilities approach do not balance competing ends but acknowledges the plural nature of human dignity
- Relationship between capabilities approach and contractarianism
  - Circumstances of justice:
    - Social contract theories stipulate the justice makes sense only when people are so placed that it pays for them to exit from the state of nature and make a compact for mutual advantage (moderate scarcity, mutual advantage)
    - The capabilities approach takes its start from the Aristotelian conception of the human being as a social and political being, who finds fulfilment in relations with others – takes the political as a natural state of affairs. It operates with the conception of a person that it develops for political purposes
      - The Aristotelian idea of the human being as “by nature” political as finding deep fulfilment in political relations, including, centrally, relation characterised by the virtue of justice → odd to imagine humans flourishing outside a network of such relations
      - This is why the capabilities approach goes straight to the content of the outcome, looks at it, and asks whether it seems compatible with a life in accordance with human dignity → because human networks and the political is natural, we need not develop such an account of political obligation like contractarians
  - “Free, equal and independent”: the account of human nature
    - Humean account of the circumstances of justice forces contract theories to hypothesise that parties are “free, equal and independent”
    - Capabilities approach does not rely on the Humean account and thus eschews such a hypothesis → instead, sees the human as a political animal – not just a moral and political being, but someone who has an animal body, and whose human dignity, rather than being opposed to this animal nature, inheres in it → humans begin as needy babies, and grow up slowly and will become needy again as they decline

- The conception of a human as a political animal includes an idea related to the contractarian idea of freedom because the person is imagined as having a deep interest in choice including a choice of a way of life and of political principles that govern
- The purpose of social cooperation
  - Social contract theories insist on mutual advantage being why political principles are formed → the good is analytically separated from the constraints of justice so that they are not defeasible by pursuits of the good life
  - The capabilities approach denies that principles of justice have to secure mutual advantage → even where noncooperation is possible and even habitual, justice is good for everyone
    - Justice is simply one thing that human beings love and pursue → not necessarily reliant on mutual advantage for its justification
  - We limit ourselves in pursuing justice if it is only for mutual advantage and we also limit ourselves if we conceive of reciprocity as obtaining only between rough equals, able to offer one another a benefit
- Motivations of the parties
  - In the Original Position, parties lack benevolence and an intrinsic love for justice due to the veil of ignorance; but in a well-ordered society, people learn principle-dependent sentiments and motives
  - The capabilities approach is able to include benevolent sentiments from the start in its account of people's relation to their good → the conception of a person includes ideas of fundamental sociability and of people's ends as including shared ends
    - Prominent moral sentiments would be compassion which includes the judgement of other's goods in the scheme of their own goods
    - It is not that compassion generates political principles; rather, it renders them stable through the development of a compassionate citizenship (moral education) that is attuned to the political principles established
- Is Nussbaum's account deficient of an account of political obligation towards her principles of justice?
  - Cannot be a contractarian account since she criticises it for assuming equal power and mutual advantage → for her, the reasoning to capabilities is not about mutual advantage but respect
  - Object of overlapping consensus is not particularly contractarian → emergence of public spirited reasons oriented towards the common good

- People need not actually consent towards the common good in the hypothetical or the real world
  - Rather, Nussbaum implicitly relies on a very strong sense of associative value and citizenship which entails fundamental respect towards fellow human beings to create political obligation towards the common good
- Basic intuitive idea is that we begin with a conception of dignity of the human being, and of a life that is worthy of that dignity – a life that has truly human functioning
  - Fully universal → important for each and every nation → an each person is to be treated as an end
  - A module that will be connected to competing comprehensive doctrines of the good in different ways by different people
- A noncontractarian account of care
  - Base of social cooperation: the account of the benefits and aims of social cooperation is moralised and socialised from the beginning → envisages human beings as cooperating out of a wide range of motives, including the love of justice itself, and prominently including a moralised compassion for those who have less than they need to lead decent and dignified lives
    - No assumption that justice is only relevant to Humean Circumstances of Justice
  - Aristotelian conception of Dignity (contrast with Kant): sees the world as containing many different types of animal dignity, rather than trying to dignify humans in a way that contrasts with animals
    - The specifically human kind of dignity is characterised by a kind of rationality, but rationality is not idealised and set in opposition to animality → it is just garden-variety practical reasoning, which is one way animals have of functioning
    - Sociability is equally fundamental and equally pervasive

*McIntyre's Whose Justice and Which Rationality (and some parts of After Virtue)*

Moral and political judgment will depend on the language of reasons and the interpretive framework within which agents view their world, hence that it makes no sense to begin the political enterprise by abstracting from the interpretive dimensions of human beliefs, practices, and institutions

- Core Claim: practical rationalities and accounts of justice are interlinked and cannot be divorced from one another. McIntyre identifies four traditions of practical rationalities that are incompatible with one another: the Aristotelian-Aquinian account, the Augustinian account, the Humean account, and the liberal tradition
- Some brief specifics of the traditions and their practical rationalities

- Aristotlian account: Justice occupies a key position among the virtues → distributive justice then consists of the application of a principle of desert to a variety of types of situation
  - Justice which is ascribed absolutely – without qualification of being relative to that society – is the justice that accords with the principle of distribution which would be established in the best kind of polis
  - For Aristotle, being virtuous is a prerequisite for practical reasoning; for Aristotle, the content of a rational decision is very different from the traditional rational agent who base rationality based on a cost-benefits calculus i.e. the satisfaction of their dominant desires since virtues are what guide practical reason
  - Virtues are, for Aristotle, dispositions to act in specific ways for specific reasons → one must understand that the exercise of the virtues as for the sake of being eudaimon, of enjoying that kind of life which constitutes the good and the best life for human beings
  - Justice, for Aristotle, is valued both for its own sake and for the sake of telos, the kind of life which it is best for human beings to live
- Humean account: Hume accepts from Hutcheson the view that reason is practically inert and cannot by its nature move us to action → rejects Aristotle's account of the role of reason in practical life
  - Hume classified moral judgements into two classes: immediate deliverances of the moral sense that are prior to reason and secondary judgements derivative of a conjunction of primary moral judgements and judgements dependent upon reasoning concerning matters of fact
- Contrast between Hume and Aristotle:
  - Aristotle's account of practical reasoning and of justice require one specific type of context, that of a society structured in terms of systematic forms of activity, within each of which specific goods are acknowledged and pursued, while within the overall social order the activity of politics provides for the inhabitants of the polis ways of understanding and pursuing those goods in an integrated way, so that the good and the best may be achieved
  - Hume's accounts require a very different type of context, that of a society structured in terms of the modes of satisfaction of desire, within which the transactions and exchanges for mutual desire are organised, while the overall social order provides formally and informally for the sustaining and enforcement of the relationships embodied in such transactions and exchanges
  - Aristotle presupposed social context is one in which evaluation is primarily in terms of the achievement of the ends of an activity;

Hume's is one in which evaluation is primarily in terms of the satisfaction of consumers.

- The individual envisaged by Aristotle engages in practical reasoning not just qua individual, but qua citizen, of a polis; the individual envisaged by Hume engages in practical reasoning qua member of a type of society in which rank, property and pride structure social exchanges
- Difficulty of evaluating rival claims: using common sense fails and also examining practical reasoning from the facts themselves about the genesis of human action and in the case of justice with most elementary apprehensions of what right conduct is also flounders
  - Aristotle and Aquinas claims that reason can direct passions; Hume claims that reason is nothing but the slave of passions
- McIntyre argues that these traditions have an internal logic to each other and are incommensurate with one another. Therefore, none of the traditions can arrogate themselves as having the exclusive title of justice
  - He denies the Cartesian strand of thought that there are first principles that can be assumed: "But such principles will have to vindicate themselves in the historical process of dialectical justification."
  - He also denies the Hegelian strand of thought that a tradition has a stage of 'final absolute knowledge' and that no one can ever rule out themselves being wrong at any stage
- It is an illusion to suppose that there is some neutral standing ground, some locus of rationality which can ford resources sufficient for enquiry independent of all traditions
  - Denies that Rawls' account is devoid of tradition and that there is a plurality of justices
- McIntyre views his account as prima facie vulnerable to two challenges: the relativist challenge and the perspectivist challenge
- The relativist challenge argues that if each tradition carries within it its own standards of rational justification, then, they cannot enter into rational debate and vindicate its rational superiority over its rivals
  - McIntyre claims that traditions are defeated by what he calls "epistemological crises" (he makes the analogies to science) recognisable by its own standards of rational justification and their inability to resolve these defects
  - The adherents of a tradition that is in crisis might not encounter in a new way the claims of some particular rival tradition, perhaps one with which they have for some time coexisted or have encountered for the first time. They now come to understand the beliefs and way of life of this other alien tradition. When they have understood the beliefs of this alien tradition, they may find themselves compelled to recognise that within this other tradition,

it is possible to construct from the concepts and theories peculiar to it what they were unable to provide from their own conceptual and theoretical resources

- The perspectivist challenge argues that we can take up multiple perspectives from different traditions and thereby engage in dialogue within ourselves and come to a conclusion
  - However, the perspectivist is a doctrine only possible for those who regard themselves as outsiders or “unencumbered selves”, as uncommitted to any tradition → the multiplicity of traditions does not afford a multiplicity of perspectives among which we can move, but a multiplicity of antagonistic commitments between which only conflict, rational or irrational, is possible

*Walzer's Spheres of Justice and Complex Equality*

## **Core Virtues of Justice**

*Reciprocity vs Subject-Centred Justice*

- Justice as self-interested reciprocity
  - Gauthier and *Morals by Agreement*: justice as reciprocity is the view that not only relations of distributive justice but moral relations generally, at least so far as they are rationally justifiable, obtain only among those who are net contributors to the cooperative surplus
    - Capacity to contribute or capacity to harm is a strategic capacities insofar as an individual can use them to influence other agents → justice as reciprocity makes the ascription of rights depend only upon the possession of either or both of these strategic capacities
- Justice as fair reciprocity: grounds justice in a particular conception of fairness
  - Each person who benefits from the contributions of others in a cooperative enterprise in which that person participates owes something to those other contributors, and they, for some reason, owe something to the individual, but only insofar as that individual is a contributor
  - Buchanan thinks that Rawls is not a version of justice as fair reciprocity even despite his characterisation of the parties in the OP and his framing of the problem of justice and says that parties are fully participating contributors to social cooperation and the problem of justice is to find principles by which to distribute the burdens and benefits of cooperation among such contributors (not among members of society in general). However, in his later work, Rawls founds the characterisation of the hypothetical choice situation and hence the principles chosen from it on a normative ideal of persons as free and

equal → subjects who possess these properties are within the scope of justice, regardless of whether they contribute to the cooperative surplus

- Barry however holds that both Rawls and Hume hold two types of theories of justice: justice as reciprocity (mutual advantage) and subject-centred justice (justice as impartiality)
- Reciprocity thesis (shared by both conceptions): only those who do (or at least can) make a contribution to the cooperative surplus have rights to social resources
  - Implications for treating
- Justice as reciprocity clashes with commonsense morality, according to which a person who is unable to contribute to the social surplus can be treated justly or unjustly, and with some of our most fundamental legal institutions, which extend basic rights to all persons, regardless of their ability to contribute
- Justice as reciprocity should not be confused with consent theories – the more limited thesis that the generation of special rights through voluntary participation in cooperative schemes → compatible with supplying basic needs to those who are unable to contribute
  - What is contentious about this is what counts as voluntary participation
- Justice as reciprocity rejects out of hand all current debates about the extent of rights of severely handicapped persons since virtually all parties to these controversies share the assumption that there are some subject-centred rights, only disagreeing about their scope
  - If justice as reciprocity is extended to all rights (right to life or refrain from injuring) and not just rights of distributive justice, it is even more radical
- Subject-centred justice: basic rights to resources are grounded not in the individual's strategic capacities but rather in other features of the individual herself – her needs or nonstrategic capacities
  - Moral status depends on features of the subject or individual herself other than her power to affect others
  - Contrast with justice as reciprocity: it is only the individual's ability to benefit others through cooperation that ground her rights and corresponding obligations of others towards her
  - Motivated by the fundamental idea that there is a moral equality of persons → focuses on the needs and non-strategic capacities of a person and upon our collective ability to help satisfy those needs and develop those capacities
- Examining the belief for a fundamental equality of persons
  - Embedded in a set of beliefs about what differentiates persons from other living things and why this difference is of such great more import
  - Supported in a coherent moral-political theory in two ways:
    - First, a broad conception of fairness, according to which treating persons as such fairly requires redressing, within limits, those morally arbitrary disadvantages that significantly impede their flourishing.

Accepts the thesis that basic entitlements to social resources are grounded in fairness and in fairness alone but rejects the claim that fairness is only fairness among its contributors → Rawlsian line

- Second, we can maintain that respect and concern for persons are their foundation → Kantian line
- Find its theoretical grounding by a theory about the moral value of person i.e. the capacities for agency which are thought to be distinctive of persons in a Kantian tradition
  - But this is just one type of a theory about personhood while a subject-centred theory of justice does not claim such a specific Kantian theory as its own
- The conceptual and normative poverty of justice as reciprocity: beyond conflicting with our intuitions
  - Fails to render intelligible some of the most serious and perplexing questions concerning justice or injustice of basic frameworks of social cooperation and the distributive effects of choosing one cooperative framework over another
  - Being able to contribute is relative to a cooperative framework since it depends on our capacities for effective participation which is relative to the standards set in society
    - Only if extending access to the cooperative framework to those not competent to play the more complex game would increase overall productivity would it be in the self-regarding interest of the more competent to do so
    - But surely, to set the threshold of skills and capacities that determines who will be able to cooperate in social cooperation is to take a stand on whose interest should count and is a question of justice → but the principles of justice for justice as reciprocity is only determined after the answer to such a question
  - Objection #1: Justice as reciprocity is blind to the prior questions of which cooperative institutions will produce just conditions for membership in the class of contributors and this is inherently incomplete
    - It sheds no light on whether the scheme of cooperation unjustly excludes some person from participating
  - Objection #2: if justice as reciprocity grounds obligation on the fact that it is mutually advantageous for such a cooperation, and that a social cooperative is as just as it is rational, then it is also rational for each to defect from the agreement to comply, so long as he can do so and reap the benefits of cooperation
    - Gauthier attempts to solve this problem by arguing that rational individuals would form in themselves a disposition to comply with fair



principles of social cooperation to govern their relations with fellow contributors

- But this fails because it would be rational not to form a disposition that in fact results in actual cooperation whenever one believes others are similarly disposed but rather (1) to feign such a disposition or (2) to develop a disposition to cooperate but also along with it an ability to inhibit the exercise of the disposition in those circumstances in which inhibiting it would be to one's advantage
- Objection #3: Privileges a kind of rationality since there is another question of rational justification which we ask about theories of justice – given a range of alternative sets of principles of justice, which set(s) are rationally preferable relative to alternatives as principles for controlling or resolving conflicting claims that individuals or groups in society make on scarce resources
  - Rawls argues that in order for principles of justice to fulfil their distinctive social role of structuring institutions and guiding behaviour they must satisfy the “Formal Constraints of the Concept of Right”: they must be (1) general, (2) public, and (3) universal in application and also (4) provide an ordering of conflicting claims that are (5) final
  - What this implies is that the principles of justice must be secular or independent of any conception of the good life and it must be sufficiently comprehensible that ordinary individuals must be able to participate in settling conflicting claims
    - Not necessarily grounded in equality of persons but the factual conditions that these are necessary for justice to carry out its role
  - So some sets of principles that satisfy the formal constraints are more rational than others in that they fulfil their social role better
  - Justice as reciprocity privileges the kind of individual rationality i.e. that an individual would comply with but not the relative rationality that is also important
- Objection #4: Failure of justification for fair reciprocity
  - Hard to argue that the only basis for rights to social resources is through contribution
  - Some fair reciprocity theories may argue: (1) Justice is a matter of desert, (2) Only those who contribute deserve a share of cooperative surplus and therefore (3) only contributors have a right to a share in social resources
  - But desert is ambiguous → Typical Rawlsian criticism that desert does not really exist
- Rawls' theory of moral contractarianism vs bargaining

- Gauthier's theory of justice as reciprocity fails because it situates justice against the background of bargaining → Rawls is not a theory of bargaining but about drawing up a contract
- Rawls' theory is not a bargaining one because the parties to the contract are situated behind a veil of ignorance without knowledge of their strategic capacities
- Rawls also emphasises that his choice situation is not just grounded in rationality but also embodies moral elements
- The only way to survive the objections is to abandon bargaining and reach moral contractarianism and that bargaining theory is an example of justice as reciprocity while moral contractarianism is an example of subject-centred justice
  - The idea is that rational individuals are to be thought of as knowing the cooperative framework they choose determines who can contribute and as bargaining in light of this information and with full information about talents and preferences → To employ the veil of ignorance would be to abandon the whole bargaining theory approach
  - It is implausible that bargainers would agree on principles that would adequately address the problem of justice in the choice of cooperative frameworks, avoiding arbitrary exclusions of some person from participation in social cooperation and entitlements to the fruits thereof
- Conclusion
  - First, rational bargaining theory contractarianism cannot provide an adequate defence of justice as reciprocity against the serious objection that it not only conflicts with some basic considered judgments about the rights of non-contributing persons but denies them the status of right-holders altogether and is unable to address what seem to be fundamental questions of justice (who is to be considered a member of society)
  - Second, if, as seems likely, rational bargaining theory is the best hope for making good the claim that justice as reciprocity is superior to subject-centred justice from the standpoint of the rationality of the individual's compliance with the principles of justice, then the proponent of justice as reciprocity cannot hope to remedy its defects without eliminating what he takes to be its distinctive virtue

## **Justice, Individuals and Institutions**

*Against the view that Justice is merely about institutional rules*

G.A. Cohen, If You're an Egalitarian, How Come You're So Rich?

Positive argument for why the principles of justice apply to individuals

- Cohen believes that the personal is political, he rejects Rawls' view that the principles of justice apply only to the 'basic structure' of society

- The feminist critique is substantively about how Rawls ignores the unjust division of labour and unjust power relations within families, but Cohen argues that the implicit form of the feminist critique when we abstract away from its gendered-centred content, is that choices not regulated by the law still fall within the primary purview of justice → Okin misses this key lesson and is wrong to count families within the basic structure
- Cohen believes that the difference principle should be applied to choices that people make within such institutions, and not just the social institutions themselves
  - Cohen disagrees not with the content of the difference principle, but with its application and on the matter of which inequalities pass the test for justifying inequality that it sets and therefore about how much inequality passes the test → hardly any serious inequality that passes the difference principle
  - The difference principle therefore implies that justice requires virtually unqualified equality itself as opposed to the deep inequalities in initial life chances with which Rawls thinks justice to be consistent
    - Commonly thought that the difference principle licenses an argument for inequality which centers on the device on material incentives → talented people will produce more that will help the worst off
- The material incentives argument focuses on a choice enjoyed by well-placed people who command a high salary in a market economy: they can choose to work more or less hard, and also to work at this occupation rather than that one → basically they can choose not to be productive to society and instead earn lots of money from Goldman Sachs
  - The talented can vary their productivity according to exactly how high it is and their position is due to circumstances that are entirely accidental
  - The incentives argument for inequality represents a distorted application of the difference principle → either the relevant talented people affirm the difference principle or they do not and society's appropriateness depends on their affirmation and willingness to uphold the correct principles of justice
  - Assume that the talented people do affirm the difference principle – that as Rawls says, they apply the principles of justice in their daily life and achieve a sense of their own justice in doing so → but they can be asked why in light of their own belief in the principle, they require more pay than the untalented get, for work which may indeed demand special talent but which is not specifically unpleasant
  - The talented can be asked whether the extra they get is necessary to enhance the position of the worst off, which is the only thing, according to the difference principle that could justify it
  - Is it only necessary insofar as the talented would decide to produce less than they now do, or to not take up posts where they are in special demand if they did not receive extra

- It is they themselves who make inequalities necessary, through their unwillingness to work for ordinary rewards as productively as they do for higher ones → ensures the untalented get less than they otherwise would
  - Inequality is only necessary because the choices of talented people are not appropriately informed by the difference principle
    - It is a would not, rather than could not
- What Cohen's critique implies is that the difference principle implies that the justice of society is not exclusively a function of its legislative structure but also a function of the choices people make within those rules
  - A society that is just within the terms of the difference principle requires not only coercive rules but also an ethos of justice that informs individual choices → otherwise, inequalities that obtain are not necessary to enhance the condition of the worst off: the required ethos promotes a distribution more just than what the rules of the economic game can secure
  - The required ethos must guide choice within rules and not merely direct agents to obey them

The Basic Structure Objection: that the focus on the choices of the talented is inappropriate since their behaviour occurs within and does not determine the basic structure of society to which the difference principle only applies

- Rawls' thrust is that whatever the people's choices may be, the basic structure is just provided it satisfies the two principles of justice
- Cohen accuses there of being an ambiguity in the notion of a basic structure
  - Whether only coercive aspects of the basic structure or also conventions and usages that are deeply entrenched but not legally coercive
- Cohen thinks that the site at which the principles of justice applies is to the pattern of benefits and burdens in society itself and not squarely on people's choices or the basic structure of society → both combined
  - Rawls might argue that for him distributive justice obtains just in case the allocation of benefits and burdens in society results from actions which display full conformity with the rules of a just basic structure; no scope for further personal justice or injustice which affects distributive justice
- Dworkin's counter-suggestion: that developing the ethos is an obligation of the government, thereby reducing the difference between Cohen and Rawls
- Cohen suggests that Rawls says three things that tell against the suggestion that the two principles of justice govern only the basic structure
  - Rawls says that when the difference principle is satisfied, society displays fraternity in a strong sense: its citizens do not want "to have greater advantage unless this is to the benefit of others who are less well

off...Members of a family commonly do not wish to gain unless they can do so in ways that further the interests of the rest."

- But this thinking as if in the original position is incompatible with Rawls' assumption that people are motivated like market maximisers → fraternity of the strong kind does not realise
- Rawls says that the worst off in a society governed by the difference principle can bear their inferior position with dignity, since they know that no improvement is possible
  - This is false since if justice relates to the structure alone, it might be necessary for the worst off to occupy their current position only because the choices of the better off are that of market maximisers
- Rawls says that people in a just society act with a sense of justice from the principles of justice in their daily lives; they strive to apply those principles in their own choices
  - They have a desire to "express their nature as free and equal moral persons, and this they do most adequately by acting from the principles that they would acknowledge in the original position"
  - But why do they have to act from the principles of justice, and "apply" them "as their circumstances require", if it suffices for justice that they choose as they please within a structure designed to effect an implementation of those principles
- Cohen's fundamental reply to the basic-structure objection to show decisively that justice requires an ethos governing fair choice which goes beyond one of obedience to just rules, on grounds which do not, exploit things that Rawls says in apparent contradiction of his stipulation that justice applies to the basic structure of society alone
  - Ask what exactly is the basic structure → fatal ambiguity in Rawls' specification of his basic structure and an associated discrepancy between his criterion for what justice judges and his desire to exclude the effects of structure-consistent personal choice from the purview of its judgement
  - Which institutions are supposed to qualify as part of the basic structure: the widespread interpretation is that the structure is legible in the provisions of its constitution and in further legislation and policy which are of central importance → broad coercive outline of society
  - But Rawls specifies social institutions and not necessarily through their ability to coerce → the second interpretation suggests that institutions belong to the basic structure whose structure can depend less on law than on convention, usage and expectation i.e like family
    - But once this line has been crossed, from coercive ordering to noncoercive ordering of society by rules and conventions of accepted practice, then the ambit of justice can no longer exclude chosen

behaviour since the prescriptions that constitute informal structure are bound up with the choices that people customarily make

- Rawls needs to justify what the primary subject of justice is → and he justifies it based on the fact that its effects are so profound from the start but it is false that only coercive institutions have such profound effects → family reminds us of this because the values that govern our nature and conduct in family
  - If Rawls retreats to a coercive structure, he contradicts the very criterion for what justice he judges, and he lands himself with an arbitrarily narrow definition of his subject matter → must expand beyond purely coercive structure
- Rawls' dilemma: either admit application of the principles of justice to social practices and to patterns of personal choice that are not legally prescribed, both because they are substances of those practices and have profound effects which collapses his restriction to basic structure OR if he restricts his concern to the coercive structure, then he saddles himself with a purely arbitrary delineation of his subject matter
  - Example: sexist family structure is consistent with sex-neutral family law and here is a circumstance outside the basic structure which profoundly affects people's life chances, through choices people make in response to the stated expectations, which are, in turn, sustained by those choices
- Cohen's basic argument
  - (1) Citizens in a just society adhere to its principles of justice
  - (2) But they do not adhere to the difference principle if they are acquisitive maximisers in daily lives
  - (3) Therefore, in a society that is governed by the difference principle, citizens lack the acquisitiveness that the incentives argument attributes to them
  - (4) The basic structure objection to that criticism is of this form: the principles of justice govern only the basic structure of a just society
  - (5) Therefore, Citizens in a just society may adhere to the difference principle whatever their choices may be within the structure it determines, and in, particular, even if their economic choices are entirely acquisitive
  - (6) Therefore, proposition (2) lacks justification
  - Preliminary reply: (7) Proposition (5) is inconsistent with many Rawlsian statements about the relationship between citizens and principles of justice in a just society
  - Fundamental reply: (8) Proposition (4) is unsustainable
- Implications on blame: do we blame individual choosers for injustice?
  - Cohen's conclusion is that the principles of justice apply not only to coercive rules but also to the patterns in people's (legally) uncoerced choices

- If we judge a certain set of rules to be just/unjust, need not blame legislators → likewise for patterns of choice
- Two mistakes: (a) there is no ground for blaming these people as individuals, for they simply participate in an accepted social practice, however awful that practice may be → but they have choices and only their choices reproduce social practices while some go against the grain of society; (b) one must not say: look how each of these people shameful decides to behave so badly since there is significant social conditioning behind personal choice
- Need not have a prosecuting attitude to the people who display 'unjust' behaviour

#### The Publicity Objection to Cohen (Williams)

- Cohen's main challenge is whether individuals who regard it as morally desirable that inequalities be arranged to benefit the least advantage can coherently disregard such a conviction in their personal choices; on Cohen's view, then the full range of incentive generating inequalities apparently supported by the difference principle cannot be justified within an ideally just society for under such conditions, in which each member of society conforms with the demands of justice, those inequalities would be superfluous
- Ethos that Cohen relies has two features: (1) ethos is not violated if individuals who perform more arduous jobs than others receive higher wages since compensatory incentives do not produce any morally relevant inequalities but offset special labour burdens; (2) the ethos does not fully require a impartial attitude to one's own interests. Cohen does not deny the existence of an agent-centered prerogative for market behaviour to be guided by self-interest to some reasonable degree
- Two basic objections to Cohen
  - The Liberty Objection: in showing that efficiency and equality can be reconciled, he has done so by sacrificing liberty to an intolerable degree → violates freedom of occupational choice which is violated by the ethos + lexical priority over the difference principle
    - Difficulties: assumption that egalitarian ethos violates right to occupational choice does not really hold water since it does not incorporate any enforceable legal requirements → must explain why the voluntary system favours threatens civil liberties
  - The Basic Structure Objection
- William defends the basic structure objection: Williams denies that the difference principle is compromised when talented individuals disregard it in their market behaviour because it applies only to a society's fundamental social, political and economic institutions (basic structure)

- Williams distinguishes between defining the basic structure in terms of what it does (dispositional properties) vs how it does whatever it does (intrinsic properties)
- First horn by Cohen's dilemma mentions an intrinsic property i.e. the structure's legally coercive nature; second horn mentions the structure's most obvious dispositional property, its tendency to affect the individual lives so profoundly
- Because the dilemma focuses on different ways of defining the basic structure, then it does not show that no suitable account is possible
- Cohen shows only that any such account must satisfy two conditions: (i) it must refer to at least one dispositional property, namely the basic structure's tendency to produce profound and unavoidable effects; (ii) the account cannot regard one particular intrinsic property – legal coerciveness – as a defining feature of the basic structure
  - Satisfied by a mixed account of the basic structure that defines it not only by means of its tendency to produce profound effects but also some further intrinsic feature over legal coerciveness
- Rawls understands institution as “a public system of rules, which defines offices and positions with their rights and duties, powers and immunities, and the like. These rules specify certain forms of action as permissible, others as forbidden; and they provide for certain penalties and defenses, and so on, when violations occur” → not all norm-governed activity as institutional
  - Reserves the term for activity that realises a certain type of norm, which is, in some sense, public → distinguishing marks of public rules
  - The structure comprises those actions which realise public rules in a way that exerts profound and unavoidable influence on individuals' access to social primary goods
- Restatement of the basic structure objection: Rawlsian principles apply to the selection of institutional means to secure basic liberties, fair equality of opportunity and the maximisation of income and wealth. They demand the establishment and maintenance of those institutions that are most effective in achieving such goals, and they condemn institutions that frustrate their achievement
  - However, those principles are inapplicable to certain type of decision → for some choices, although they may be profoundly influential, they cannot be regarded as according with, or violating, public rules
  - Consequently, the nonpublic strategies and maxims that individuals employ in making those choices need not be assessed as just or unjust by means of Rawlsian principles
- Why Cohen's egalitarian ethos cannot be regarded as realising public rules
  - Two forms of an ethos:



- a narrow ethos comprises only distributive requirements: any inequalities must either (i) compensate for special labour burdens, (ii) motivate productive labour which cannot be summoned at will, or (iii) fall within a reasonable agent-centred prerogative
  - A wide ethos contains additional productive requirements, which are relevant when deciding which training or jobs to pursue → governs career choice and wage negotiation
- Cohen likely favours the more extensive wide ethos since it meant to serve an analogous role to material incentives in ensuring that human productivity is employed efficiently
- The disability objection: even if the difference principle is applicable only to the basic structure, it condemns many inequality-generating incentives because it requires an egalitarian ethos that would render such inequalities superfluous
  - Now suppose that a society's basic structure comprises a set of institutions that embody public rules → if so the success of the disability objection depends on whether Cohen's ethos can satisfy the publicity conditions
  - We need to check if her additional income compensates for her special labour burdens or is legitimised by an agent centred prerogative → but difficult since it is extremely unlikely that individuals could obtain reliable information about each others' relative levels of job satisfaction, the extent to which their past decisions render them responsible for inequalities in those levels, and the appropriate amount of financial compensation for any remaining unchosen disadvantages
    - "Labour is a burden of social cooperation...that fails the test of public checkability"
  - Occupational compensation resists institutionalisation for epistemic reasons
  - Prerogatives resists institutionalisation because the "right to pursue self-interest to some reasonable extent" is not only so vague but also admits of many natural extensions → unclear if applying own conception of self-interest or must adopt a common conception
  - No way of how to specify even roughly when it becomes unreasonable to care more about benefit to one's self than the achievement of an equal distribution → the failure to do so is not in itself objectionable → but it just depends on detailed knowledge of individual's partial concerns and their contexts → cannot be regarded as public rules
- Ethos is too complex to be represented as an institution embodying public rules or supply what Rawls calls "a common basis for determining mutual expectations."
  - Justice must be seen in order to be done → some aspects of the personal cannot be viewed as political

## Rejecting negative arguments for why the principles of justice do not apply to individuals

- Two main arguments to be considered
  - Rawls: the demands placed by justice on government do not belong on the backs of individuals: individuals discharge those demands collectively, through the governments that represents them
  - Cohen's counter-thesis: that justice in personal choice, within a just ethos, is necessary for a society to qualify as just
    - Cohen is concerned about egalitarians who live in an unequal society, since that is not the same question as "what does justice demand of individuals in a just society"
- The main problem is whether there is an inconsistency in the following i.e. whether the principles of justice have any implication on individual behaviour
  - A believes in equality
  - A is rich (which means that A does not give a relevant amount of his money away)
  - (A believes) that A's behaviour is not out of line with his own moral principles
- Some egalitarians might argue that while egalitarians prefer a society of an egalitarian type, preferring that type of society has no implications for behaviour in a society of a different type and is therefore consistent with their acceptance of rich pickings
  - Thin logical consistency: I favour an equal society i.e. a society with an egalitarian norm; but if all but two people live by that norm, of whom I am one and the other is a rich anti-egalitarian, then my egalitarianism does not commit me to living by the egalitarian norm since my society remains an unequal one even if I did so
  - What matters is not bare logical consistency but a consistency which incorporates the reason the egalitarian would give in support of her belief in equality: everything depends on why she favours it
    - If she favours it because she thinks inequality is unjust, then it is hard to agree that her behaviour is principled
- But not all egalitarians despise inequality because it is unjust – they could hate it because it destroys community and alienates people from one another
  - Extravagant charity on my part could do nothing to repair this alienation between persons
  - Cohen: what makes the distinction between redheads and brunettes, or beer-lovers and wine-drinkers non-hateful while the rich vs poor a hateful one is that the poor have intelligible sentiments of injustice when they contemplate that division
- Further to that argument, egalitarians may think that comprehensive state egalitarian redistribution is required to promote the good: you cannot promote it yourself

- Challenge: “why don’t you top up the holdings of some of those who are nearest the bottom line of what you consider to be a good life, until you are yourself just above that line?”
- Two rejoinders:
  - Practicality: unfeasible to make one’s charity work in the fine-tuned fashion that the challenge contemplates – one can never be sure that the lives one is targeting are nearly good due to epistemic difficulties
    - Still does not justify the non-giving of those who are super rich that they can give a lot without being below some level of the good life
  - Principle: distinguishes between what states of affairs a person thinks are good and what obligations he believes he has to promote those states of affairs
    - I might think that London’s appearance would benefit if more of its prospective new architecture were neo-Gothic rather than post-modern, but it does not follow that I think myself obliged to join or to form a bring-back-Gothic society
    - It is only act consequentialists who believe that one has a duty to maximise the good
- Harm form of the problem for egalitarians who believe in equality because they think that inequality is unjust
  - One cannot deny that one is obliged to forgo the benefits one enjoys as a result of what one results as injustice, when one can forgo them in a fashion that benefits sufferers of that injustice
  - Since rich egalitarians inspired by justice give what they do with a sense of obligation, they cannot say that their egalitarian beliefs have no implications for how they should act in an unequal society
    - So how can they give away such a small portion of their surplus
  - They can say that even if they give more, it will be just a small drop in the ocean
    - But rich egalitarians still give something and that is a smaller drop into the ocean
- Specification of egalitarian principles
  - Relational: locate value in equality which is a relation between what different people get and which is strictly indifferent to how much they get
    - Drop defence works better here
  - Prioritarians: like Rawls who give priority to the worst off
    - Drop defence works worse here
  - But most people are prioritarians than relational egalitarians: they are egalitarian because they think equality would benefit the badly off

- Dworkin's theory of equality: the locus of the norm of equality proper is in the relationship between the state and those over whom it claims the right to govern
  - Because it claims that right, it must treat its citizens with equal respect and concern, on pain of being a tyrant and it must therefore distribute resources equally to its members
  - If the state fails to do this, no analogue duty falls on individuals to treat everyone with respect and concern
  - But it does not follow that no related duty falls on the individuals when the state fails to be just: for Dworkin, it is then her duty to promote equality by trying to change the state's policy → insofar as government is unjust, then the citizenry whom it represents are, Dworkin thinks, are collectively guilty and therefore each has a duty to seek to rectify the state's injustice
  - According to Dworkin, the state, is the authoritative agent of the citizenry as a whole; hence if the state fails in its distributive duty, but excessively wealthy people happen to be good at coordinating their actions with one another, then they would indeed be obliged so to coordinate as to secure equality
    - It is not true that the only relevant duty of the individual is to promote equality by working for better state policy (obligation is indirect)
    - But it remains true that her duty as a member of a collective on whom the duty primarily falls: if I know that others won't cooperate appropriately, then equality per se gives me no reason to open my purse
    - Our duty to help those who are poor are based on human compassion and not one that derives from a principle of equality
  - If Dworkin's "statocentric" view of equality is sustainable, then it follows that the rich egalitarian need not structure his life as the state should structure it, in conformity with an egalitarian norm
- Cohen's objection and doubts over whether Dworkin's position is sustainable
  - It is unclear that a state which refuses to pursue a norm of strict distributive equality ipso facto shows failure to treat its subjects with equal respect and concern
    - If the government pursues a free market with a high guaranteed minimum wage → does not seem convicted of disrespect
    - If distributive equality proper does not follow from Dworkin's premises about the state, then egalitarians cannot use his theory as a defence
  - Even if a state fails to institute distributive equality indeed is convicted of a form of tyranny, then it still seems implausible that the only point of distributive justice is to avoid tyranny
    - Norm of distributive equality surely stands independently of any kind of political equality, even if political equality requires it

- Another challenge to why rich egalitarians have no individual duty is because giving to charity does not touch fundamental injustice (in the Marxian sense) of the structured inequality of power between the bourgeois and the proletariat
  - But even if power inequality is the fundamental injustice, it hardly follows that the unequal distribution of income that derives from it is not also unjust
    - Should still be obliged to address the secondary injustice
  - It is also false to say that the power difference is the fundamental injustice in every relevant sense – it is causally but not normatively fundamental since the power difference qualifies as unjust because it standardly generates an unjust income distribution
- Challenge from right to private space: each person has a right to a private space into which social duty does not intrude
  - Consistent to hold that private spaces are legitimate and that there is still social duty
  - In a society with a state-imposed egalitarian income distribution there is plenty for everyone to decide without regard to social duty about the shape of their own lives and the same goes for rich donors
  - The concern is about how expansive this private space should be: the private space objection in its most persuasive form should stay that the private space should be so shaped that one's life is not oppressive and that it would be oppressive to require the rich to have continual regard for the condition of the poor
- Challenge from mental burden: too mentally burdensome to keep on giving
  - Nagel argues that there is justifiably unwillingness to give even if the person is willing and eager to contribute through taxation – there is an 'excessive burden' on a person's will
    - Spared the burden of making a choice even if it does reduce my choice
  - Nagel is arguing that people are justified in refusing to give voluntarily, because the demands on the will which that impose are "excessive"
    - Ignores the fact that I can avoid such persistent voluntary choices – signing a banker's order
  - Distinguish between the cost of doing something and how difficult it is to do that thing
    - Cost of an action is what I lose as a result of performing it whereas its difficulty for me is a function of how my capacities measure up to the challenges it poses
  - Cohen argues that Nagel's case is weak: it is true in some sense that it is hard to give away money but we must nail down this sense and it is not true once we have done so → it is merely an excuse for the egalitarian's inertia

- Nagel means difficult and difficulty is not a reason for not performing an action that is possible

## Justice, Meritocracy and the Free Market

Miller's notion of desert

Summary: Miller argues that the concept of desert is pre-institutional and not incoherent, but might not be the primary value around which justice is centred

- Preliminaries
  - Desert is not entitlement and Rawls mistakenly equates them
    - Entitlements are legitimate expectations and therefore institutional concepts → the winner is entitled to the prize because of the rules of the game
    - However, in a race, one might say that while A is entitled to win due to superior performance in that single race, B deserved to win nonetheless because he was an overall better runner
    - Deservingness therefore has a moral connotation that entitlement cannot capture
  - Desert is pre-institutional
    - Miller argues that desert is the standard against which we assess our institutions against and does not merely emerge from whether an institution executes its rules fairly to all people → intuitively appealing
    - When we invoke the concept of desert, we are often assessing the way our institutions work in the light of prior ideas about what constitutes a fitting response to individual performance → Desert is a critical notion and we use it to challenge the way our institutions allocate benefits
    - A just society is, in a considerable part, a society whose institutions are arranged so that people get the benefits they deserve, and many legitimate complaints about existing societies appeal to this principle
- Desert and the problem of luck
  - Integral luck nullifies desert and we have to factor it out when judging what people deserve
    - Such as tripping over during the race or accidentally inventing something
  - Circumstantial luck is luck about being in the position to do something
    - Will have to qualify our desert claims
  - Natural endowments
    - People cannot deserve anything merely for having talents but can deserve something for the exercise of their talent + talent-based luck seems weaker or less negative than integral luck or circumstantial luck

- But we have to retreat further that the choice and effort involved in any action is against a background of unchosen factors
- Why free choice conception of desert cannot hold
  - Based on intentional performance
  - Consideration of natural endowments: we must discount natural endowments from one's performances
    - People cannot deserve anything merely for having talents but can deserve something for the exercise of their talent + talent-based luck seems weaker or less negative than integral luck or circumstantial luck
  - But we have to retreat further that the choice and effort involved in any action is against a background of unchosen factors → must recognise all the contingencies
  - The recognition of all of these contingencies shrinks one's desert bases until it is a small tiny fraction of one's normal range
- Revised conception of desert
  - Miller thinks that the failings of the free-choice conception of desert shows us that we need an idea of an agent and a performance, where the performance is intended and controlled by the agent, but makes use of qualities and characteristics integral to him/her – her natural tastes and abilities among them
    - Factor out luck proper such as features of the environment
    - Cannot eliminate every sort of contingency
  - 4 kinds of desert claims
    - Unjust if benefits are allocated by criteria that are irrelevant from the point of view of desert
      - We can only consider criterion/factors that are relevant to the completion of the job i.e. not gender, religion etc
    - When two people are equally deserving, it is unjust that one person should be paid more than the other
    - Unjust when there is a disproportion between what group A is receiving by virtue of P and what group A' is receiving by virtue of P'
      - Nurses being underpaid compared to doctors
    - Noncomparative judgements of desert without reference to what others have received
      - Miller does not think this is possible

Basic Concepts of Meritocracy: Stuart White, *Equality*, chapter 3.

- Arguments for meritocracy
  - Efficiency argument: most qualified get selected → consistent with economics doctrine in minimising cost (allocating the best resources to the best functions)

- Just argument: the best people are deserving for the job → there is a moral basis for them getting the job → choosing someone else less qualified may be seen as unjust or discriminatory → in other words, merit is the only morally permissible basis for discrimination
- Conceptions of meritocracy → differs over the range of disadvantages that they respectively identify as obstructing equality of opportunity and thereby preventing a truly merit-based distribution of jobs and incomes → what is equality of opportunity
  - Weak meritocracy: just discrimination → equality of opportunity is just the absence of discrimination in access to important goods like education and employment
    - Discrimination under this conception is related to selected against candidates for jobs and other positions on grounds that are unrelated to their capacity to perform well in the relevant job or position
    - Both the state and the private sector can be agents of discrimination
  - Strong meritocracy: counts discrimination + background inequalities such as those in education and financial inheritance → so some people are seriously disadvantaged compared with others in their opportunities to develop their talents and to apply them for reward
    - Adds to the concern the environment the individual grew up in
    - Weak meritocracy leaves each person's prospects in life radically dependent on accident of birth → seems unjust
      - Examples are easily thought of
    - Systemic disadvantages in education → a child should not have worse prospects for the fact that they are born into a lower social class and cannot afford the best education
    - Modern society rarely achieves this ideal → if it is an ideal or not
- Arguments against meritocracy
  - Threat to Liberty: threatens freedom of association because private associations (such as firms) are no longer allowed to practice exclusion at their discretion (i.e. based on race or gender)
    - Stronger argument: how can society prohibit aspirational parents to use their resources to enhance their children's prospects → surely they are allowed to pursue their ends which includes the flourishing of their children → prohibiting inheritance also disallows parents to use their own money for what they want (transference to children)
    - Freedom of religion: fundamentalist Christians who support these gender roles → Hayek thinks that we should choose a free society instead of a meritocratic ones
    - Responses by meritocrats:
      - Their proposal allows for autonomy → they allow girls to critically evaluate their families beliefs and to choose whether



to follow them or not rather than forcing them to believe opposite of their families' beliefs

- Possible to reduce inequality by a long way before reducing inequality of opportunity before important personal freedoms are threatened → consider the objection that taxation of inheritances will infringe the freedom of parents and other relatives to pass wealth on to descendants → but we can satisfy some of inheritance by allowing every citizen a modest 'lifetime accessions quota' (a quota of wealth that they may receive via inheritance, bequest or gift) according to Meade; for freedom of association, anti-discrimination laws can protect perhaps the most important kinds of association (Case of Roberts vs Jaycees → Court argues that two fundamental freedoms of associations were not violated: freedom of intimate association by forming a family, and freedom of expressive association typified by religious or political associations)
- Status inequality: Forwarded by Young → People who end up in lower social classes cannot explain it away on a lack of opportunity (it is because they aren't good enough) → a sense of genuine inferiority + a sense of superiority because they know they have high ability
  - Response by Miller:
    - Important to offset the meritocratic distribution of jobs and incomes by cultivating a 'robust form of equal citizenship' → the government must act so that people develop a 'strong understanding of their equality as citizens regardless of their economic desert'
    - Society must explicitly distinguish between economic merit or desert and merit in a wider, comprehensive sense → a lot of ground for respecting people and according them esteem (such as moral reasons) → maintaining status equality → but empirically contingent and also incredibly abstract
- Incoherence of meritocracy: life is dependent on what happens previously → so we cannot keep on resetting the status of people
  - Hirsch: at the limit, equality of opportunity is equality of outcome
  - I think the argument is not just intergenerational, but within lifetimes as well
- Unfair to less talented: essentially Rawls' critique of desert
  - One has no control over his abilities → the fundamental basis of desert is that it was my choice to do something → presumably I deserve something because I work harder for it

■ The meritocratic ideal is fraudulent

Iris Marion Young, *Justice and the Politics of Difference*, chapter 7

Affirmative action and the Myth of Merit

Summary: affirmative action challenges the principles of liberal equality more directly than many proponents are willing to admit, but making this challenge explicit strengthens the case for these programs; in particular, affirmative action challenges the primacy of a principle of non-discrimination and the conviction that persons should be treated only as individuals and not as members of groups. However, the contemporary affirmative debate is an instance of the application of the distributive paradigm of justice by defining gender and racial justice in terms of the distribution of privileged positions among groups and fails to bring into question issues of institutional organisation and decision making power

- Injustice defined primarily in terms of concepts of oppression and domination, rather than distribution
- For the merit principle to apply, it must be possible to identify, measure and compare and rank individual performance of tasks via criteria that are normatively and culturally neutral
  - Not possible → scientific measures of merit do not exist
  - So a major issue of justice must be who decides what are the appropriate qualifications for a given position, how they will be assessed, and whether particular individuals have them
  - Labour hierarchy is a structure of domination → development of workplace democracy can remedy this justice but it is not enough → relations of knowledge, autonomy, and cooperation must themselves be restructured in the definition of tasks in order to reduce or undermine oppression
- AA and nondiscrimination: AA is usually justified via compensating for past injustices
  - But individuals benefitting are not the same as those discriminated against (but they still feel the residual effects)
  - Such justification creates a narrow range of permissible policies
  - The argument that AA is redress for a history of society discrimination is weak because it renders the notion of discrimination unacceptably vague
  - Fullinwider: dilemma → if we do not use preferential hiring, we permit discrimination to exist (through persistent perceptions). But if we use preferential hiring, we permit discrimination
    - But there is an equivocation on discrimination → former is unconscious bias while the second is a conscious practice
    - Dilemma disappears if proponents of AA abandon the assumption that nondiscrimination is a paramount principle of justice
  - Critiques of AA suggest that it violates a principle of nondiscrimination

- But equality, defined as the participation and inclusion of all groups in institutions and positions, is sometimes better served by differential treatment
- Young suggests that the concept of discrimination be restricted to the explicit exclusion or preference of some people in the distribution of benefits or treatment they receive on account of their social group membership → it becomes v difficult to prove that it takes place
  - So Young suggests that the moral focus should be on victims (discrimination focuses on the perpetrator) and that oppression is the key focus of justice
    - Allows us to admit AA which are indeed discriminatory
    - These policies intervene in the process of oppression → goal is equality
- AA discussion and the distributive paradigm: solely focusing on distribution tends to obscure questions of the justice of social institutions which is at least as important as distribution
  - Theories of justice that focus on distribution tend to assume the institutional structures which produce distributions as given background conditions whose injustice is not brought into question → supports institutional relations as given

Glenn C. Loury, 'Why Should We Care About Group Inequality?', *Social Philosophy and Policy* 5 (1), 1996.

Basically talks about why group disparities are impermissible, and that an egalitarian society should work to resolve these disparities, rather than adopting an anonymity condition as in social choice theory

- Not immediately obvious that group disparities are problematic
  - Only problematic when they stem from oppression or historical injustices
  - However, one must note that even if all of such oppression were hypothetically removed, we would not have groups converging to the same distribution of economic rewards → ethnic groups have different cultures and work ethic, as well as differing styles of thinking → may lead to very different successes
  - It could be argued that the formation of such distinct beliefs are precisely created by oppression → gender roles for women, the lack of representation of minorities at the upper echelon of successes
    - But the problem with this is that it works too much → it can also lead to these groups being better in some respects → poor academic performance yet outstanding athletic performance stem from the same source but the latter seems less of a moral problem
- Why is inequality across groups, prima facie, less acceptable than inequality within groups

- The American perspective has always been about distributing reward according to content of character, rather than by the state of ascriptive personal characteristics
- But the liberal standard is the notion of 'colourblindness' when the problem is localised to race → more generally, follow Sen in calling this the "anonymity axiom"
  - The burden of affirmative action is to prove why it is better to correct for group differences, than to simply be "blind" to group differences i.e. not scanning for race during job interviews → why is the former more egalitarian or more just
  - Practice of colour-conscious state action rests on rather less firm philosophical ground → arguments are typically to demonstrate the invalidity of the notion that positions should be distributed according to the nebulous criterion of "merit" followed by a set of unsupported empirical claims regarding the benefits sure to flow from a more equal distribution of positions among groups
- Different kinds of affirmative action which cannot be rationalised together
  - Enforcement oriented: group-conscious state actions whose main purpose is to prevent overt but undetectable, private discrimination → eliminate private procedures that violate anti discrimination principles
  - Result oriented: concern themselves with the outcome of private actions which may be wholly unobjectionable, but which occur in the face of unacceptable de facto racial disparities → like increasing racial representation and diversity
  - Main focus is to justify result oriented policies
- Thesis: Through a specification of how multi-ethnic societies actually function, conclude that social justice is not consistent with a blanket prohibition on the use of group categories as a basis for state action → show that disparities and outcomes from private actions are socially undesirable, justifying deviation from the norm
- Can we expect that the continued application of racially neutral procedures to lead eventually to an outcome no longer reflective of our history of discrimination
  - If no, then race-neutrality would condemn the historically oppressed to continue to pay their dues indefinitely to ethically illegitimate acts → ethically unacceptable
  - Also, why should these groups even wait for labour markets to correct injustices → it is already unjust
- Economic model: basically, one's successes are dependent on the position of our parents which are influenced by historical factors → endowment matters + nontransferable benefits of birth through parental behaviours bearing on later-life productivity
  - Past discrimination has cascading effects

- Families also tend to group themselves together into social clusters (high income schools) → local public goods available to themselves
- The competitive labour market would not function in such a way as to eventually eliminate any initial differences in the average status of the two groups which historical discrimination might have produced
  - Race and income influence the agglomeration of family clusters
  - Apparently, when persons in society discriminate in their choice of associates on the basis of economic class, but not ethnic group, equal opportunity always leads eventually to an equal distribution across groups → but when there is social segregation in associational behaviour along group as well as class lines, then it is not generally true that historically generated differences between the groups attenuate in the face of racial neutral procedures
  - This happens because, when there is some racial segregation among communities, the process by which status is transferred across generations does not work in the same way for minority and majority families
    - The inequality of family circumstances generated by historical economic discrimination is exacerbated by differential access to the benefits of those quasi-public resources available only in the affiliation clusters → status is preserved within groups
  - The principal mechanism in which group status is preserved within groups is through the creation of quasi-public resources available only locally
    - But it seems to me that once you prevent this, according to Loury, all will be solved → which does not seem to make sense
- But there are limits on what one can hope to achieve by racial classification by the state
  - Racial discrimination is routinely practised in the intimate, personal sphere and people think it is absurd to demand reparations even if blacks are disproportionately affected since white men tend to be economically better off
- Wrong reasons for caring about group inequality
  - Reparations for Historical injustices: no reason why a middle-class black should be offered an educational opportunity that is being denied to a lower class white
    - The institution of such a policy confers special public status on the historic injustices faced by its beneficiary groups, and hence devalues, implicitly, the injustices endured by others
  - Comparative victimology: devolution into comparing the plights between groups → unanswerable questions since there is no neutral vantage point
  - But through our democratic process, racially preferential treatments expresses the collective priorities of the nation as a whole

- But the rhetoric of being owed something would place the African Americans constantly under the power of the whites → for they constantly seek their pity and their guilt if pursuing such affirmative actions measures
  - Is it permissible for those whose ancestors who arrived after the emancipation and themselves faced discrimination to be morally blackmailed
- Unintended consequences for the use of racial practices
  - Damage the esteem of the groups because there might be a perception that without the use of such practices, the beneficiary groups would not be able to qualify for such positions
    - Attacks the individual's attainment → when something carries prestige, it is driven by its scarcity → so it is more glorious when woman becomes CEO → but if AA is present, it more acutely detracts from that person's attainment
    - Also makes other groups angrier and perpetuate their inner biases → that women may be less competent even when they are not
  - Serious cost with the use of racial classification

Hayek's criticism of meritocracy